



January 15, 2026

HOUSE BILL No. 1137

DIGEST OF HB 1137 (Updated January 14, 2026 11:01 am - DI 110)

Citations Affected: IC 20-26.

Synopsis: Foods and beverages on school property. Provides that a public school that participates in a federally funded or assisted meal program: (1) may not serve, sell, or allow a third party vendor to serve or sell a food or beverage that contains certain ingredients on school property on a school day; and (2) shall post any breakfast or lunch menu and ingredients on the school's website. Establishes exceptions.

Effective: July 1, 2026.

McGuire, Smith H, Barrett, Culp

January 5, 2026, read first time and referred to Committee on Education.
January 15, 2026, amended, reported — Do Pass.

HB 1137—LS 6622/DI 110



January 15, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1137

A BILL FOR AN ACT to amend the Indiana Code concerning education.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 20-26-9-20 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]: **Sec. 20. (a) This section does not apply to the following:**

4 (1) **Vending machines on school property that are not**
5 **accessible by students.**

6 (2) **Events on school property that occur on the weekend.**

7 (b) **Beginning with the 2027-2028 school year and except as**
8 **provided under subsection (c), a public school, including a charter**
9 **school, that participates in a federally funded or assisted meal**
10 **program:**

11 (1) **shall post on the school's website the school's breakfast**
12 **and lunch menu, as applicable, with the list of ingredients for**
13 **each item on the menu; and**

14 (2) **may not serve, sell, or allow a third party vendor to serve**
15 **or sell a food or beverage on school property on a school day**
16 **that contains one (1) or more of the following ingredients:**

17 (A) **Potassium bromate (CAS 7758-01-02).**

HB 1137—LS 6622/DI 110



- 1 (B) Propylparaben (CAS 94-13-3).
2 (C) Titanium dioxide (CAS 13463-67-7).
3 (D) Yellow dye 5 (CAS 1934-21-0).
4 (E) Yellow dye 6 (CAS 2783-94-0).
5 (F) Blue dye 1 (CAS 3844-45-9).
6 (G) Blue dye 2 (CAS 860-22-0).
7 (H) Green dye 3 (CAS 2353-45-9).
8 (I) Red dye 3 (CAS 16423-68-0).
9 (J) Red dye 40 (CAS 25956-17-6).
10 (K) Butylated hydroxytoluene (BHT) (CAS 128-37-0).
11 (L) Tert-butylhydroquinone (TBHQ) (CAS 1948-33-0).
12 (M) Azodicarbonamide (CAS 123-77-3).
13 (c) A school described in subsection (b) may sell or permit the
14 sale of a food or beverage that contains an ingredient listed in
15 subsection (b)(2) on school property as part of a fundraising event
16 if the sale of the food or beverage occurs at least thirty (30) minutes
17 after the end of the school day.
18 (d) This section does not prohibit the parent of a student from
19 providing a food or beverage that contains an ingredient listed in
20 subsection (b)(2) to the student on a school day.



COMMITTEE REPORT

Mr. Speaker: Your Committee on Education, to which was referred House Bill 1137, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 1, delete lines 1 through 17, begin a new paragraph and insert:

"SECTION 1. IC 20-26-9-20 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 20. (a) This section does not apply to the following:**

(1) Vending machines on school property that are not accessible by students.

(2) Events on school property that occur on the weekend.

(b) Beginning with the 2027-2028 school year and except as provided under subsection (c), a public school, including a charter school, that participates in a federally funded or assisted meal program:

(1) shall post on the school's website the school's breakfast and lunch menu, as applicable, with the list of ingredients for each item on the menu; and

(2) may not serve, sell, or allow a third party vendor to serve or sell a food or beverage on school property on a school day that contains one (1) or more of the following ingredients:

(A) Potassium bromate (CAS 7758-01-02).

(B) Propylparaben (CAS 94-13-3).

(C) Titanium dioxide (CAS 13463-67-7).

(D) Yellow dye 5 (CAS 1934-21-0).

(E) Yellow dye 6 (CAS 2783-94-0).

(F) Blue dye 1 (CAS 3844-45-9).

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(J) Red dye 40 (CAS 25956-17-6).

(K) Butylated hydroxytoluene (BHT) (CAS 128-37-0).

(L) Tert-butylhydroquinone (TBHQ) (CAS 1948-33-0).

(M) Azodicarbonamide (CAS 123-77-3)."

Page 2, delete lines 1 through 11.

Page 2, line 13, delete "an ultraprocessed food or beverage" and insert "**a food or beverage that contains an ingredient listed in subsection (b)(2)**".

Page 2, line 14, delete "ultraprocessed".

Page 2, line 18, delete "an ultraprocessed food or beverage" and insert "**a food or beverage that contains an ingredient listed in**

HB 1137—LS 6622/DI 110



subsection (b)(2)".

Page 2, line 18, delete "during" and insert "**on a**".

Page 2, line 19, delete "the".

and when so amended that said bill do pass.

(Reference is to HB 1137 as introduced.)

BEHNING

Committee Vote: yeas 11, nays 0.

